

PART II.

THUS then out of these judgments it appears, that this court hath jurisdiction in all cases of *conspiracy* where the common law hath any, and in divers cases further than the common law. And to manifest that this is no usurpation of this court in latter times, I find that in 7. H. 8. one *Palin* and *Blackenball* are there sentenced, for that they did "maliciously and without cause reasonable" (for these are the words of the sentence) accuse one *Cuthbert Laugh-ton* for clipping of money; and in 18. H. 8. one *Constance* the wife of *John Young* was questioned for false accusing of *Thomas Young*, his brother, to have made away and murdered her husband, whom she knew to be alive, as appeareth by her own confession before the cardinal; in both which there appears no indictment or acquittal once mentioned to be precedent to the same,

I MUST also observe, that by the common law no indictment of conspiracy can lie but against two at the least; but in this court, if one man falsely accuse another, he shall be here punished, as in conspiracy. And so was *Lee* not long since sentenced and branded for practising subtilly to accuse divers men of great worth to have been guilty of the Powder treason; and so was *Pye* for malicious seeking to indict *mr. Meyrick* of the Temple for felony; in both which cases both the defendants stood on the pillory, and lost their ears, and the one was branded with F. A. in the face.

It appears by *Fitzherbert* in *Nat. Bre.* in his Writ of Conspiracy, that if a man be falsely indicted for felony, and the same felony be pardoned by a general pardon, although to manifest his innocence he will plead to the indictment, and he be acquitted, and will take no advantage in pleading of the pardon, yet at the common law he can have no action of conspiracy; and the reason there given is, for that his life was not in jeopardy. But there is no question but this court will for the king punish this offence, and hath jurisdiction sufficient, which is proved by the

Cases